Master Services Agreement

This Master Services Agreement (the **Agreement**) is made on 11 January 2026 (the **Effective Date**)

Parties

(1) **ARCADIA RETAIL INC.**, a retailer whose headquarters are in the United States (the **Client**); and

(2) **TATVA INFOSYSTEMS LTD** (the **Supplier**).

Background

(A) The Client carries on business as a retailer and requires information technology services.

(B) The Supplier has agreed to provide such services to the Client on the terms of this Agreement.

1. Definitions and interpretation

1.1 In this Agreement, unless the context otherwise requires:

1.1.1 **Business Day** means a day other than a Saturday, Sunday or public holiday in England;

1.1.2 **Charges** means the charges payable for the Services as set out in Schedule 2 – Charges;

1.1.3 **Confidential Information** means all information of a confidential nature disclosed by or on behalf of one party to the other, in any form, whether before or after the Effective Date, including business, financial, technical and customer information;

1.1.4 **Data Protection Legislation** means all laws relating to the processing of personal data and privacy that apply to a party in connection with this Agreement;

1.1.5 **DPA** means the data processing agreement executed, or to be executed, between the parties alongside this Agreement;

1.1.6 **Intellectual Property Rights** means patents, copyright, rights in software, database rights, trade marks, rights in confidential information and all similar rights anywhere in the world, whether registered or not;

1.1.7 **Key Personnel** means the Supplier's personnel identified as such in Schedule 1 – Services or otherwise agreed in writing by the parties;

1.1.8 **Services** means the services described in Schedule 1 – Services; and

1.1.9 **Term** means the Initial Term and any Renewal Period.

1.2 Clause and schedule headings do not affect interpretation. The Schedules form part of this Agreement. If there is any conflict, the clauses of this Agreement prevail over the Schedules, save as expressly stated otherwise in a Schedule.

2. Term and renewal

2.1 This Agreement commences on the Effective Date and, unless terminated earlier in accordance with its terms, continues until 11 January 2029, being a period of 36 months (the **Initial Term**).

2.2 On expiry of the Initial Term, and of each Renewal Period, this Agreement renews automatically for a successive period of 12 months (each a **Renewal Period**) unless either party gives the other not less than 90 days' written notice of non-renewal before the end of the then-current Initial Term or Renewal Period.

3. The Services

3.1 The Supplier shall provide the Services to the Client from the Effective Date in accordance with this Agreement and Schedule 1 – Services.

3.2 The Supplier shall perform the Services with reasonable skill and care, in accordance with good industry practice, using appropriately qualified and experienced personnel, and in compliance with applicable law.

3.3 The Supplier shall deliver to the Client, monthly, written reports on service levels and productivity in respect of the Services (the **SLA and Productivity Reports**), in the format reasonably required by the Client.

3.4 The Supplier shall give the Client not less than 15 days' written notice before replacing any Key Personnel, and shall ensure an orderly handover and that any replacement has suitable skills and experience.

3.5 The Client shall provide the Supplier with such information, access and cooperation as the Supplier reasonably requires to perform the Services.

3.6 Any change to the Services or the Charges shall be effective only if agreed in writing and signed by both parties.

4. Charges and payment

4.1 The Client shall pay the Charges in accordance with Schedule 2 – Charges.

4.2 The Supplier shall submit valid invoices addressed to the Client. A valid invoice shall identify the Services provided, the applicable Charges and any purchase order reference notified by the Client.

4.3 The Client shall pay each undisputed invoice within 30 days of receipt of a valid invoice.

4.4 If the Client disputes any invoice in good faith, it shall notify the Supplier promptly, pay any undisputed part, and the parties shall seek to resolve the dispute promptly. The Supplier shall continue to perform the Services during any dispute.

4.5 Unless stated otherwise in Schedule 2 – Charges, the Charges are exclusive of applicable sales tax, value added tax or similar taxes, which shall be payable in addition on receipt of a valid tax invoice.

5. Warranties

5.1 The Supplier warrants that:

5.1.1 it has full power and authority to enter into and perform this Agreement;

5.1.2 the Services will be performed in accordance with clause 3.2 and Schedule 1 – Services; and

5.1.3 the Services and any deliverables will not infringe the Intellectual Property Rights of any third party.

5.2 The Supplier shall, for a period of 60 days following performance or delivery of the relevant Service or deliverable (the **Warranty Period**), correct at its own cost any failure to comply with the warranty in clause 5.1.2 promptly after notification by the Client.

5.3 Except as expressly set out in this Agreement, all warranties, conditions and terms implied by law are excluded to the fullest extent permitted by law.

6. Intellectual property

6.1 Each party retains ownership of its Intellectual Property Rights existing at the Effective Date or developed independently of this Agreement.

6.2 Subject to payment of the relevant Charges, all Intellectual Property Rights in deliverables created specifically for the Client under this Agreement shall vest in the Client on creation, and the Supplier assigns them to the Client with full title guarantee.

6.3 The Supplier grants the Client a non-exclusive, perpetual, worldwide, royalty-free licence to use any Supplier pre-existing materials incorporated in the deliverables to the extent necessary to use the deliverables.

6.4 The Client grants the Supplier a non-exclusive, non-transferable licence during the Term to use the Client's materials solely to provide the Services.

7. Confidentiality

7.1 Each party shall keep the other's Confidential Information confidential, shall use it only to perform or receive the benefit of this Agreement, and shall not disclose it except to those of its employees, advisers and subcontractors who need to know it and are bound by equivalent obligations.

7.2 Clause 7.1 does not apply to information that is or becomes public other than through breach, was lawfully known to the recipient beforehand, is independently developed, or is received lawfully from a third party without restriction.

7.3 A party may disclose Confidential Information to the extent required by law, court order or a regulatory authority, giving the other party, where lawful, prior notice.

7.4 The obligations in this clause 7 survive for 5 years after the expiry or termination of this Agreement.

8. Data protection

8.1 The parties acknowledge that the Services involve the processing of personal data of the Client's customers and employees.

8.2 The parties have executed, or will execute alongside this Agreement, the DPA, which governs that processing. The Supplier shall process such personal data only in accordance with the DPA, the Client's documented instructions and the Data Protection Legislation.

8.3 The Supplier shall implement appropriate technical and organisational measures to protect personal data against unauthorised or unlawful processing and accidental loss, destruction or damage, and shall notify the Client without undue delay on becoming aware of any personal data breach.

8.4 In the event of conflict between this clause 8 and the DPA in relation to the processing of personal data, the DPA prevails.

9. Indemnity

9.1 The Supplier shall indemnify the Client against all losses, damages, costs and expenses (including reasonable legal fees) arising out of any third-party claim that the Services or deliverables infringe that third party's Intellectual Property Rights.

9.2 The Client shall give the Supplier prompt notice of any such claim, allow the Supplier conduct of the defence and settlement (provided no settlement imposes liability on the Client without its consent, not to be unreasonably withheld), and give reasonable assistance at the Supplier's cost.

9.3 The Supplier shall not be liable under clause 9.1 to the extent a claim arises from the Supplier's compliance with the Client's specifications or from modification of the deliverables by anyone other than the Supplier.

10. Limitation of liability

10.1 Nothing in this Agreement limits or excludes liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, or any other liability that cannot lawfully be limited or excluded.

10.2 Subject to clause 10.1, neither party shall be liable to the other, whether in contract, tort (including negligence), breach of statutory duty or otherwise, for any indirect or consequential loss.

10.3 Subject to clauses 10.1 and 10.4, each party's total aggregate liability arising under or in connection with this Agreement is limited to two (2) times the Charges paid or payable in the twelve (12) months preceding the claim.

10.4 The limit in clause 10.3 does not apply to the Supplier's liability under clause 9.1 or to liability for breach of clause 7.

11. Insurance

11.1 The Supplier shall maintain throughout the Term, with a reputable insurer, insurance cover of at least USD 2,000,000 per claim, and shall provide evidence of that cover on the Client's reasonable request.

12. Termination

12.1 The Client may terminate this Agreement without cause by giving the Supplier not less than 60 days' written notice.

12.2 Either party may terminate this Agreement immediately by written notice if the other:

12.2.1 commits a material breach that is irremediable, or, if remediable, is not remedied within 30 days of written notice requiring remedy; or

12.2.2 becomes insolvent, enters administration, liquidation or any similar procedure, or ceases to carry on business.

12.3 On expiry or termination, the Supplier shall promptly return or, at the Client's election, securely delete all Client data and Confidential Information, and provide reasonable assistance to transition the Services to the Client or its nominee.

12.4 Expiry or termination does not affect accrued rights or remedies, nor clauses 5.2, 6, 7, 8, 9, 10, 12.3, 15 and 16, which continue in force.

13. Assignment and subcontracting

13.1 Neither party may assign, transfer or subcontract any of its rights or obligations under this Agreement without the prior written consent of the other, such consent not to be unreasonably withheld.

13.2 The Supplier remains responsible for the acts and omissions of its subcontractors as if they were its own.

14. Notices

14.1 Notices under this Agreement shall be in writing and delivered by hand, by recorded or international courier, or by email with confirmation of transmission, to the address of the receiving party last notified in writing for that purpose.

14.2 A notice is deemed received: if delivered by hand or courier, on delivery; and if sent by email, at the time of transmission or, if outside business hours, at the start of the next Business Day.

15. General

15.1 **Entire agreement.** This Agreement, with its Schedules and the DPA, constitutes the entire agreement between the parties and supersedes all prior discussions and understandings relating to its subject matter. Neither party has relied on any representation not set out in it.

15.2 **Variation and waiver.** No variation is effective unless in writing and signed by both parties. A failure or delay in exercising a right is not a waiver of it.

15.3 **Severance.** If any provision is held invalid or unenforceable, the remainder continues in full force.

15.4 **Force majeure.** Neither party is liable for delay or failure caused by events beyond its reasonable control, provided it notifies the other promptly and uses reasonable endeavours to mitigate the effect.

15.5 **Relationship.** Nothing in this Agreement creates a partnership, agency or employment relationship between the parties.

15.6 **Third party rights.** A person who is not a party has no right under the Contracts (Rights of Third Parties) Act 1999 to enforce any term of this Agreement.

15.7 **Counterparts.** This Agreement may be executed in counterparts, each of which is an original and which together constitute one agreement.

16. Governing law and jurisdiction

16.1 This Agreement and any dispute or claim arising out of or in connection with it (including non-contractual disputes or claims) are governed by the laws of England and Wales.

16.2 Subject to any agreed escalation, the courts of England and Wales have exclusive jurisdiction to settle any such dispute or claim.

Signatures

This Agreement has been entered into on the date stated at its beginning and is signed by the parties' authorised representatives.

Signed for and on behalf of ARCADIA RETAIL INC.	**Signed for and on behalf of TATVA INFOSYSTEMS LTD**
Signature: _____	Signature: _____
Name: Michael Brennan	Name: Richard Hale
Title: Chief Procurement Officer	Title: Authorised Signatory
Date: 01 January 2026	Date: 04 January 2026

Schedule 1 – Services

1. **Scope.** The Supplier shall provide information technology services to the Client, comprising application development and maintenance, infrastructure and end-user

support, and related technical consultancy, as requested by the Client from time to time and agreed in writing.

2. **Service levels.** The Supplier shall meet the service levels agreed between the parties in writing and shall record its performance against them in the SLA and Productivity Reports delivered monthly under clause 3.3.

3. **Key Personnel.** The Key Personnel are the Supplier's engagement lead, delivery manager and technical architect assigned to the Client, whose names shall be notified to the Client in writing. Clause 3.4 applies to any replacement.

4. **Governance.** The parties shall hold service review meetings at regular intervals, to be agreed, to review performance, risks and the SLA and Productivity Reports.

Schedule 2 – Charges

1. **Basis of Charges.** The Charges shall be calculated on the rates and basis set out in the pricing agreed in writing by the parties and recorded in each ordering document signed under this Agreement.

2. **Invoicing.** The Supplier shall invoice the Charges in arrears, monthly, and each invoice shall be paid in accordance with clause 4.

3. **Expenses.** The Client shall reimburse only reasonable expenses that it has approved in writing in advance and that are supported by receipts.

4. **Currency.** Unless otherwise agreed in writing, the Charges are stated and payable in United States dollars.